

FROM Robert Samuel White <rsw@rswfire.com>
TO GAUTHIER Katie * OPRD <Katie.GAUTHIER@opr.oregon.gov>
DATE April 14, 2026, 5:45 PM PT
SUBJECT **RE: Records Request response- 4/2/2026**
DOCUMENT 01KP79KZHGGJ2XH73FXBDJGG2G

To: Katie Gauthier, External Relations Manager

Oregon Parks and Recreation Department

725 Summer St. NE, Suite C

Salem, OR 97301-1271

From: Robert Samuel White

P.O. Box 334

Reedsport, Oregon 97467

rsw@rswfire.com

Re: Public Records Request dated April 2, 2026 – Response to Cost Estimate dated April 10, 2026 sent April 14, 2026

Date: April 14, 2026

Dear Ms. Gauthier:

I am writing in response to your April 14, 2026 letter with the April 10, 2026 cost estimate for my public records request submitted on April 2, 2026.

The estimated costs—ranging from thousands to tens of thousands of dollars for records that document how a public agency treated an unpaid volunteer—are unreasonable, appear designed to obstruct disclosure, and violate both the letter and spirit of Oregon's public records law.

I reject this cost estimate and demand that OPRD provide a revised response that complies with Oregon law.

I. OREGON PUBLIC RECORDS LAW REQUIRES ACCESS, NOT OBSTRUCTION

Oregon's public records law exists to ensure government transparency and accountability. ORS 192.410 et seq. establishes a strong presumption in favor of disclosure. Agencies are required to facilitate access to public records, not erect financial barriers that make disclosure effectively impossible.

Your cost estimate makes meaningful access impossible. Charging thousands of dollars for records that document institutional conduct toward a volunteer who was expelled for protected speech is not facilitation—it is obstruction.

II. THE COST ESTIMATES ARE FACIALLY UNREASONABLE

A. Volunteer Program Reviews (Item 3): 40+ Hours

Your estimate: "Minimum of forty hours or more" at \$32/hour = \$1,280+

Why this is unreasonable:

You are estimating that it will take one full work week to collect records of volunteer program reviews and assessments. This suggests either:

Your records management is so disorganized that basic program documentation cannot be located, or
You are inflating costs to discourage the request

Volunteer program reviews should be maintained in an organized, accessible manner. If they are not, that is an agency failure—not grounds to charge prohibitive fees.

I require specific justification: Explain in detail why locating and producing volunteer program reviews requires 40+ hours of staff time.

B. Communications Between Agencies (Item 10): 60-80 Hours

Your estimate: "60-80 hours" at \$32/hour = \$1,920-\$2,560, plus potential legal review at \$75/hour

Why this is unreasonable:

You are estimating that it will take two full work weeks to search for communications between OPRD and other state agencies regarding volunteer program operations. This is for a defined time period (January 2025-present, approximately 16 months) and a specific subject matter.

Modern records management systems allow agencies to search email and document repositories by keyword, sender, date range, and subject. Producing these records should not require 60-80 hours

unless:

OPRD's records management is fundamentally broken, or
You are inflating the estimate to create a financial barrier

I require specific justification: Explain in detail what search methodology requires 60-80 hours and why standard email search functions cannot be used.

C. Digital Communications (Items 25-27): "Substantial Staff Time" With No Estimate

Your response: "This request would take substantial staff time... Staff do not yet have an estimated number of hours"

Why this is unreasonable:

You are claiming you cannot even estimate the time required to search digital communications, calendars, and databases related to volunteer management. This is implausible. Your IT systems can generate search parameters and provide estimated record volumes.

Refusing to provide an estimate prevents me from evaluating whether to proceed and appears designed to discourage the request entirely.

I require specific estimates: Provide actual hour estimates for Items 25, 26, and 27, with detailed justification for the search methodology.

D. The Inconsistency: Law Enforcement Coordination (2026 Request) = 2-5 Hours

Your estimate: "2-5 hours" at \$32/hour = \$64-\$160

Why this is revealing:

You estimate that searching for all communications between OPRD employees and law enforcement agencies (U.S. Forest Service, Oregon State Police, Lane County Sheriff) regarding my name, my volunteer service, or my online archive will take only 2-5 hours.

This is the request that should reveal whether OPRD coordinated with law enforcement to send officers to my door on March 24, 2026—the one-year anniversary of my expulsion for protected speech. This is

the most sensitive item in the entire request. And yet it is priced as one of the cheapest.

This suggests one of three things:

Very little documentation exists (which raises the question: why did police show up at a locked federal gate if there was no coordination?),

You are lowballing this estimate to avoid me narrowing the scope of other items, or

You plan to withhold or heavily redact responsive records under claimed exemptions

The pricing inconsistency undermines the credibility of your entire cost estimate.

III. OPRD'S CONDUCT DEMONSTRATES A PATTERN OF OBSTRUCTION

This is not the first time OPRD has used procedural mechanisms to avoid accountability.

Timeline of Obstruction:

August 22, 2025: I submitted a comprehensive public records request to Director Lisa Sumption and the Public Records Officer (presumably you).

90+ days of silence: OPRD violated Oregon public records law by failing to respond within the required timeframe

After formal Notice of Violation: OPRD claimed to have responded through an internal portal I had no access to and could not have known existed

December 2025: I withdrew the request because I understood you were obstructing

April 2, 2026: I refiled a narrowed version of the same request

April 10, 2026: You respond with cost estimates designed to make compliance financially impossible

This is a pattern, not an isolated incident. OPRD has consistently used procedural barriers—silence, inaccessible portals, prohibitive costs—to avoid producing records that document institutional conduct.

IV. I AM ENTITLED TO A FEE WAIVER

A. I Am Indigent

I am a volunteer caretaker living in an RV on federal land. I have no regular income. I survive through volunteer service in exchange for a place to live. I do not currently receive wages, salary, or compensation of any kind.

I meet the statutory definition of indigence. Charging me thousands of dollars for public records is not just unreasonable—it is impossible. I do not have \$3,000, \$5,000, or \$10,000 to pay for records that document how a state agency treated me.

B. This Request Serves a Clear Public Interest

I maintain a public archive at oprdivolunteerabuse.org documenting the displacement framework—a systematic pattern of institutional abuse applied to volunteers in state park systems. This archive serves the public interest by:

- Providing transparency into government operations
- Documenting institutional conduct that lacks oversight
- Creating a resource for other volunteers experiencing similar treatment
- Informing legislative efforts to establish protections for unpaid volunteers

The records I am requesting will be published in full on this public archive. This is not a personal request for private use—it is a public records request that will result in public disclosure for the benefit of other volunteers, advocates, legislators, and the press.

C. Oregon Law Supports Fee Waivers for Public Interest Requests

ORS 192.440(4) allows agencies to waive fees when disclosure is in the public interest. OPRD has discretion to waive fees when:

The requester cannot afford to pay, and
The disclosure serves a public interest

Both conditions are met here. I am indigent, and the records will be made public to serve transparency and accountability.

V. OPRD DOES NOT MAKE THE RULES—THE LAW DOES

OPRD is a public agency subject to Oregon's public records law. You do not have discretion to create financial barriers that prevent disclosure. The law requires you to facilitate access.

If you cannot produce these records at a reasonable cost, that is an agency failure—not a justification for prohibitive fees.

Your records management systems should allow you to search and produce documents efficiently. If they do not, that reflects poorly on OPRD's operations. It does not justify charging thousands of dollars to an indigent requester seeking transparency.

VI. DEMANDS AND NEXT STEPS

I demand the following:

A. Immediate Fee Waiver

Waive all fees associated with this request on the grounds of:

Indigence (I have no income and cannot pay)

Public interest (records will be published for public benefit)

B. Revised Cost Estimates With Specific Justification

If you deny the fee waiver, provide revised cost estimates with detailed, specific justification for:

Why volunteer program reviews require 40+ hours

Why inter-agency communications require 60-80 hours

Why digital communications cannot be estimated

What search methodology you are using that requires this level of effort

Why the 2026 law enforcement request is estimated at only 2-5 hours while everything else is exponentially higher

C. Production of Low-Cost Items Immediately

Items 1, 2, 4, 8, 12, 15, 29, and 32 are estimated at 0-6 hours total. Produce these records immediately at no cost as a demonstration of good faith.

D. Deadline for Response

Respond in a reasonable amount of time. If I do not receive:

A fee waiver, or

Revised estimates with specific, detailed justification, or
Production of the low-cost items

I will pursue legal remedies immediately. This includes filing suit in circuit court to compel disclosure and recover attorney fees under ORS 192.440(3).

VII. CONCLUSION

I am entitled to these records under Oregon law. I was expelled from the Oregon State Parks volunteer program for exercising protected speech. One year later, law enforcement officers appeared at a locked federal gate where I live and work to question me about my online archive.

I have a right to know what my government did and why.

OPRD does not get to charge thousands of dollars to prevent that disclosure. You are a public agency. You answer to the public. The records I am requesting document how you treated a member of that public.

Produce the records, waive the fees, or see me in court.

Sincerely,

Robert Samuel White

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